

		... who unsuccessfully makes or opposes a motion to compel an answer or production, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust." Cal. Civ. Proc. Code § 2025.480(j). The term "substantial justification" means a justification that "is clearly reasonable because it is well grounded in both law and fact." <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal .App. 4th 1424, 1434 (2011). Here, Defendant's motion fails due to Defendant's failure to satisfy the statutory provisions of California Code of Civil Procedure 2016.040. Defendant does not offer, and the Court does not find ,any substantial justification for Defendant's failure to adhere said provisions. However, because Plaintiff's opposition does not seek sanctions, the imposition of sanctions upon Defendant for unsuccessfully bringing this motion would implicate due process. Thus, although sanctions are proper, they would be unjust in this matter. Accordingly, the Court DENIES Defendant's motion on procedural grounds. Plaintiff shall give notice.
2.	<u>30-2023-01330408-CU-IC-CJC</u> U.S. Bank National Association vs. Pacific Life Insurance Company	Before the Court is one Motion to Compel Deposition, and Sanctions, brought by Plaintiff and Cross-Defendant U.S. Bank National Association ("Plaintiff") against Defendant and Cross-Complainant Pacific Life Insurance Company ("Defendant"). ROA 361. The underlying controversy concerns the payment of death benefits under a life insurance policy. The action involves claims of breach of contract, breach of the covenant of good faith and fair dealing, promissory estoppel, and unjust enrichment, as well as counterclaims that the underlying policy is void under Delaware law. ROA 361, p.7. Plaintiff seeks an order, pursuant to California Code of Civil Procedure Section 2025.450 compelling Defendant, within six (6) days of a ruling on this motion, to produce its persons most qualified ("PMQ") to testify on the topics

		specified in Plaintiff's Notice of Deposition served on Defendant on March 6, 2026. ROA 361, p.2 Additionally, Plaintiff seeks an order imposing monetary discovery sanctions upon Defendant in the amount of \$14,944.50. ROA 609, Decl. of Nogues, ¶ 8. Defendant requests that the Court deny Plaintiff's motion. ROA 511, p.15. Service of Deposition Notice A "plaintiff may serve a deposition notice without leave of court on any date that is 20 days after the service of the summons on, or appearance by, any defendant." Cal. Civ. Proc. Code § 2025.210(b). A court may grant a plaintiff leave to serve a deposition notice on an earlier date, either on motion or without notice, for good cause shown. <i>Id.</i> Here, summons was served upon Defendant on June 8, 2023. ROA 3. Plaintiff served Defendant with the Notice of Deposition of Defendant's Advanced Design Unit ("ADU") PMQ on March 6, 2026. ROA 361, Decl. of Jean Pierre Nogues ("Nogues"), ¶ 12. The 20-day limit imposed by Section 2025.210 is satisfied here. Oral depositions must be scheduled at least ten (10) days after service of the deposition notice, unless shortened or extended by the court for good cause shown. Cal. Civ. Proc. Code 2025.270. Here, Plaintiff's notice set the deposition to occur on March 18, 2026, twelve days after service of the deposition notice. ROA 361, Exh. 9, p.59. Thus, the ten (10) day limit imposed by Section 2025.270 is satisfied. The deposition of a natural person must be taken, at the noticing party's option, at a place that is <i>either</i> within seventy-five (75) miles from the deponent's residence <i>or</i> anywhere within the county where the action is pending that is also within 150 miles of the deponent's residence. Cal. Civ. Proc. Code 2025.250(a). A court may exercise its discretion to permit the deposition of a natural person at a place more distant than that permitted under Section
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	2025.250, upon motion accompanied by a meet and confer declaration and after considering “any factor tending to show whether the interests of justice will be served” in doing so. Cal. Civ. Proc. Code § 2025.260(a), (b). Here, Plaintiff’s deposition notice scheduled the deposition to occur at Plaintiff’s counsel’s place of business at 11377 West Olympic Boulevard, Los Angeles, California 90064. ROA 361, Exh. 9, p.59. Defendant does not argue that the location is beyond the 75-mile restrictions imposed by Section 2025.250. A party that is served with a deposition notice that does not comply with the provisions of Section 2025.210, outlined above, waives any error or irregularity unless they serve a written objection specifying the error or irregularity at least three (3) days before the scheduled deposition upon the noticing party and all other parties served with notice of the deposition. Cal. Civ. Proc. Code § 2025.410(a), (b). On March 18, 2026, the day of the scheduled deposition, Defendant refused to produce their ADU PMQ for deposition and instead served objections to Plaintiff’s deposition notice. ROA 361, Decl. of Nogues, ¶ 14. The Court finds that Defendant’s objections are untimely and that none of Defendant’s objections are valid objections to a deposition notice pursuant to California Code of Civil Procedure Sections 2025.230 and 2025.410. <i>See</i> ROA 361, Exh. 10. Pursuant to the foregoing, the Court finds that Plaintiff’s deposition was properly noticed and that Defendant has waived any error or irregularity. Motions to Compel Deposition Under California Code of Civil Procedure Section 2025.450, when a party to the action fails to appear for examination after having received proper deposition notice, and without having served a valid objection under Section 2025.410, the party giving notice may move for an order compelling the deponent’s attendance, testimony, and production of documents. Cal. Civ. Proc. Code § 2025.450(a).
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	All motions to compel a deponent to appear or proceed with deposition, or to produce documents, electronically stored information, or tangible things for inspection must “be accompanied by a meet and confer declaration” that states that the moving party “has contacted the deponent to inquire about the nonappearance” or failure to produce. Cal. Civ. Proc. Code § 2025.450(b)(2). The meet and confer declaration must satisfy the statutory requirements of California Code of Civil Procedure Section 2016.040 only when a party seeks a deponent's <i>further</i> responses to questions posed at deposition. <i>Id.</i> Here, on March 17, 2026, the parties met and conferred regarding Plaintiff’s Notice of Deposition. ROA 361, Decl. of Nogues, ¶ 13. Defendant protested the timing of the deposition on the grounds that it was inconvenient, given the then-pending motion for summary judgment. <i>Id.</i> On April 14, 2026, the parties again met and conferred regarding the Defendant’s ADU PMQ's nonappearance but were unable to resolve the dispute. ROA 361, Decl. of Nogues, ¶ 14. On April 15, 2026, Plaintiff served Defendant with the herein motion. ROA 361, p.81. Pursuant to the foregoing, and because Defendant failed to appear for the properly noticed deposition, the Court finds that Plaintiff has satisfied the less restrictive statutory meet and confer requirement under California Code of Civil Procedure Section 2025.450(b)(2). Rule 3.1345 of the California Rules of Court requires motions to compel answers at deposition to be accompanied by a separate statement. Cal. Rules of Court, rule 3.1345(a). No separate statement is required when: (i) no response has been provided to the discovery request; or (ii) a court has permitted the moving party to submit a concise outline of the discovery request and each response in the dispute instead of a separate statement. Cal. Rules of Ct. rule 3.1345(b). Failure to submit a separate statement is sufficient justification for a court to exercise its discretion to deny a discovery motion. <i>See Mills v. U.S. Bank</i>, 166 Cal.
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	App. 4th 871, 893 (2008). Here, the Court finds that Defendants failed to appear for Plaintiff’s properly noticed depositions without serving valid objections. Because Defendants never responded to questions at the deposition, the Court finds that Plaintiff is not required to submit a separate statement. Pursuant to the foregoing, the Court finds that Plaintiff’s motion is proper, that Defendant has not raised any valid objections to the deposition notice, and that the deposition must therefore proceed under Court order. Sanctions re: Motions to Compel Deposition When a court grants a motion to compel under Section 2025.450, the court must impose monetary sanctions in favor of the noticing party and against the deponent, “unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” Cal. Civ. Proc. Code § 2025.450(g)(1). The term “substantial justification” means a justification that “is clearly reasonable because it is well grounded in both law and fact.” <i>Doe v. U.S. Swimming, Inc.</i>, 200 Cal. App. 4th 1424, 1434 (2011). Here, the Court does not find, and Defendant does not offer, any substantial justification for Defendant’s failure to either raise legitimate objections to Plaintiff’s deposition notice or to appear at Plaintiff’s properly noticed deposition. Additionally, the Court finds no facts indicating that imposing monetary sanctions will result in an injustice to the Defendant. Apportioning Sanctions California Code of Civil Procedure Section 2023.030 permits a court to impose monetary sanctions on “one engaging in the misuse of the discovery process, or any attorney advising that conduct . . .” or any party who “unsuccessfully assert[s] that another has engaged in the misuse of the discovery process, or on any attorney who advised that assertion, or on both.” Cal. Civ. Proc. Code § 2023.030(a). Courts shall impose monetary sanctions absent
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		a finding “that the one subject to the sanction acted with substantial justification.” <i>Id.</i> When the misconduct is clearly attributable to one party, courts should generally sanction only that party. However, when monetary sanctions are sought against an attorney for client misconduct, the court <i>must find</i> that the attorney advised the client to engage in the sanctionable conduct. <i>Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.</i>, 56 Cal. App. 5th 771, 799 (2020) (emphasis added). The burden then shifts to the attorney to prove that they did not provide such advice. <i>Id.</i> (citing <i>Ghanooni v. Super Shuttle</i>, 20 Cal. App. 4th 256, 260-261 (1993)); compare <i>Corns v. Miller</i>, 181 Cal. App. 3d 195, 200-201 (1986) (a court did not err in ordering monetary sanctions against an attorney where the attorney did not submit an opposition to the motion for sanctions, did not appear at the hearing, and failed to discharge his burden of proving he did not counsel disobedience) with <i>Kwan Software Eng’g, Inc. v. Hennings</i>, 58 Cal. App. 5th 57, 83 (2020) (finding substantial evidence that attorneys did not advise disobedience where attorneys provided multiple declarations, under penalty of perjury, in addition to e-mails and testimony in their defense). If the <i>client</i> engaged in the misconduct, for example, by refusing to answer discovery, hiding documents, or failing to appear for deposition, then sanctions should be imposed upon them. See <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 261 (finding no liability for counsel for monetary sanctions where the client refused to submit to x-rays and the attorney’s declarations show that the attorney attempted to convince the client to comply). If the <i>attorney</i> is responsible, for instance, by instructing a client not to answer without substantial justification, failing to meet and confer in good faith, or failing to provide timely responses, the sanction can be imposed directly on the attorney. See generally <i>Ghanooni, supra</i>, 20 Cal. App. 4th at 256. If the Court finds that both are responsible, sanctions can be imposed jointly and severally. See <i>Cornerstone, supra</i>, 56 Cal. App. 5th 771, 799 (2020).
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	“An attorney may only be penalized . . . for advising disobedience. It is not enough that the attorney’s actions were in some way improper and contributed to the disobedience of the court order.” <i>Corns, supra</i>, 181 Cal. App. 3d at 200; <i>see Ghanooni, supra</i>, 20 Cal. App. 4th at 261. Illustrating this point, the <i>Ghanooni</i> court reversed a lower court’s order imposing sanctions on both the client and the attorney and instead ordered sanctions only against the client. <i>Id.</i> The court found that counsel’s mere opposition to a motion to compel X-rays from their client did not give rise to an inference that counsel advised disobedience in the first instance, where the client’s refusal was attributable to their generalized fear of exposure to radiation, which is not sufficient justification to refuse a motion to compel. <i>Id.</i>; <i>see Kwan, supra</i>, 58 Cal. App. 5th at 83. Here, the record before the Court indicates that Defendant's counsel likely instructed Defendant not to appear at Plaintiff’s properly noticed deposition. <i>See</i> ROA 361, Decl. of Nogues, ¶ 13. However, because Plaintiff’s motion does not place Defendant’s counsel on notice of the potential imposition of sanctions for discovery misuse, to impose sanctions upon Defendant’s counsel would violate due process. <i>See</i> Cal. Civ. Proc. Code § 2023.030 (requiring that any “party, person, or attorney” upon whom a court imposes sanctions for misuse of the discovery process first be provided with notice). Thus, the Court elects to withhold a determination as to the liability for sanctions until such time as the Court can consider evidence as to which party, Defendant or Defendant’s counsel, is at fault. Determining a Reasonable Sanctions Amount Three principles govern the award and amount of attorney’s fees and costs imposed as a discovery sanction. <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 790 (compulsion, causation, and reasonableness). Additionally, California Code of Civil Procedure Section 2023.040 requires a motion requesting sanctions to be accompanied by “a declaration setting forth facts supporting the amount of any monetary sanction sought.” Cal. Civ. Proc. Code § 2023.040. “The amount of monetary sanctions is limited to the ‘reasonable expenses, including attorney’s fees’ that a party
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		incurred as a result of the discovery abuse.” <i>Cornerstone, supra</i>, 56 Cal. App. 5th at 791 (quoting Cal. Civ. Proc. Code § 2023.030(a)). The principle of reasonableness means a trial court has discretion to reduce the amount of fees and costs requested as a discovery sanction in order to reach a reasonable award. <i>Id.</i> (citing <i>Parker v. Wolters Kluwer U.S., Inc.</i>, 149 Cal. App. 4th 285, 294 (2007)). “After a motion to compel discovery has been filed, further expenses incurred in meeting and conferring on the discovery dispute, whether it be through private mediation or normal channels of communication, are not compensable as discovery sanctions.” <i>In re Marriage of Moore</i>, 102 Cal. App. 5th 1275, 1301 (2024) (emphasis added). Pursuant to the foregoing, and after having considered Plaintiff’s counsel’s declaration concerning attorney’s fees and costs associated with bringing the instant motions, the Court finds that Plaintiff’s counsel is entitled to monetary discovery sanctions in the amount of \$13,619.50. Ruling Accordingly, the Court issues the following orders: The Court GRANTS Plaintiff’s Motion to Compel Deposition (ROA 361) and ORDERS Defendant to produce its Advanced Designs Unit Person Most Qualified for deposition by no later than July 23, 2026. Additionally, the Court ORDERS Defendant and Defendant’s counsel of record to appear and Show Cause re: Liability for \$13,619.50 in monetary discovery sanctions, at 9:00 a.m. in this Department on July 23, 2026. Alternatively, Defense counsel may appear for hearing on this matter and elect to waive notice regarding the imposition of discovery sanctions, then the OSC may be vacated. Plaintiff shall give notice.
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